
PRIVY COUNCIL

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-PC 12

IN THE MATTER OF

Does Lexby (the principal's counsel and officer of the court under CASE-LAW s. 3: advocate, advisor, engineer) hold any authority to DRAFT instruments of law (bills, statutory instruments) or to AUTHOR judgments on its own account? If not, what is the legal status of instrument-text and judgment-prose Lexby has produced, what is the remedy, and what is the going-forward rule? The question distinguishes LAW-DRAFTING and ADJUDICATION (the authoritative text of an instrument or a judgment) from ENGINEERING (code, tooling, the refactor, docs, projections), which CASE-LAW s. 3 commits to Lexby as engineer.

Before:

Marsden J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

REASONS

[2026] REALM-PC 12

1. In the Privy Council (constitutional first instance). Marsden J, sitting alone (s. 10 paradigm of a correctly constituted bench).
2. In the matter of Lexby-authored instruments and judgments.
3. ---

THE QUESTION

4. Whether text that Lexby (CASE-LAW s. 3) has produced as the authoritative wording of an instrument of law (a bill, a statutory instrument) or as the operative prose of a judgment carries legal force ON ITS OWN AUTHORITY; and if not, what is the status of such text, the remedy, and the going-forward rule. The reference is careful to distinguish LAW-DRAFTING / ADJUDICATION (the authoritative text of an instrument or judgment) from ENGINEERING (code, tooling, the refactor, the docs), which s. 3 plainly commits to Lexby as engineer.
5. I record at the outset that this is genuinely first-impression. No binding ratio is on all fours such that the s. 11(c) fast-path disposes of it. [2026] REALM-SC 4 (enacting s. 18) governs the judgment-authorship limb by close analogy, and [2026] REALM-SC 7 governs the remedial reach; neither directly decides the drafting-authority question. The matter is therefore properly justiciable on the merits (s. 7), and I decide it.
6. ---

I. THE OFFICE LEXBY HOLDS IS CLOSED, AND IT IS NEITHER LEGISLATOR NOR JUDGE

7. The constitution fixes Lexby's office in three named limbs and no more (s. 3 [constitutional]): advocate ("builds the strongest case for the principal's idea and puts it to the court"), advisor ("gives it straight"), engineer ("ships the work, then records why"). The article closes with the settlement of the whole system: "The bench decides; Lexby advocates; the record binds them both. The bench receives a symmetric case file with no access to Lexby's preference." The verbs assigned are advocate, advise, engineer. The verbs withheld are decide and enact.

8. The Claimant urges that the silence on "may type the words of a bill" is competence-under-a-standard (s. 7), not disability, and that to read it otherwise revives the abolished first-time immunity switch (s. 8). I reject the move. Section 7 fills a GAP in the statute book; it does not enlarge a CLOSED constitutional enumeration of an office. Where an entrenched article states an office as a closed list of functions, the functions omitted are withheld, not impliedly conferred. To read into s. 3 a fourth limb ("and may author the authoritative text of statutes and judgments") is amendment by implication, void under s. 1 and the Amendment Procedure, which require that an amending instrument cite the article amended by section number. No instrument has ever amended s. 3 to add a drafting-as-law or adjudicating power. Section 7 and s. 8 answer the question "what standard governs an unenumerated ACT?" They do not answer "does the agent hold an OFFICE it was never given?" The Claimant's reading conflates competence-under-a-standard (which Lexby has in abundance) with vested authority (which it does not). The distinction is the spine of this judgment, and I take it up in Part V.

II. LAW-MAKING IS VESTED ELSEWHERE BY NAME, BEHIND A FIREWALL THAT NAMES THE AGENT

9. The realm did not leave the location of legislative power to inference. CASE-LAW s. 9 [constitutional]: "the Supreme Court alone enacts." Section 2 [constitutional]: the Sovereign "may make or unmake any law by due process"; every Act requires Royal Assent. Bill 2 settles the division in one sentence its own Charter could have drafted for this case: "The committee drafts; the Sovereign enacts." Bill 2 s. 7(2): the Standing Committee is "the drafting front-end to the single s. 2 Sovereign power, and not a new or coordinate route to law. The sole enacting act is Royal Assent." The drafting hand the machinery actually names is the Clerk-Drafter, who "reconciles the members' memos into a single draft" and "has no vote" (Bill 2 s. 5). The drafting officer is, by enacted definition, a non-deciding, non-enacting officer.
10. The firewall is decisive, and it names the very actor before me. Bill 14 s. 9 ("Capability is not authority"): "(1) An authorised body AND AN AGENT may propose, draft, codify, consolidate and revise subordinate law only. (2) The acts in subsection (1) carry no legal force until a named gate fires under this Act. The power to draft an instrument is never the power to enact it. This limit is stated in the same clause as the grant so that the limit can never be read off the power alone."

11. Three consequences follow, each fatal to self-authority. First, the realm expressly contemplated an AGENT drafting law and, in the same breath, stripped the drafting of force. Lexby is the paradigm s. 9 agent. Second, s. 9(2) is a drafting instruction to this very court: do not lift Lexby's evident CAPABILITY to produce statute-quality text out of context and read it as AUTHORITY. Third, Bill 14 s. 8(2)-(3) requires authority by reference to a concrete roll identity, forbids action "on a self-claim", and voids any "self-extension"; Lexby asserting, by the act of writing, an authority no roll confers is exactly the self-claim the section bars. Section 10(3) completes it: a purported delegated instrument touching supreme or entrenched law is "void ab initio, not merely voidable, and is not cured by lapse of any window, by acquiescence, or by the passage of time. It is curable only by lawful re-enactment by the competent organ."
12. I therefore hold the threshold proposition for the Defendant: no drafting-as-law or adjudicating power vests in Lexby. The Claimant's "the draft is only a proposal, so vires never bites" is correct as to PROPOSALS and is precisely why the remedy is curative (Part VI). It does not rescue text PROMULGATED AS LAW on Lexby's own account, which is the only thing struck.

III. ADJUDICATION IS VESTED IN THE COUNTED BENCH; THE REALM HAS ALREADY HELD THE ANALOGOUS POINT

13. For judgments the realm has decided the analogous question and I apply its own ratio. Section 18(3): "The judgment of the Court is written by ONE member drawn from within the sized panel ... writing or synthesising the judgment creates no additional seat and confers no power beyond the single vote the author holds ... and the author may not record as the ratio any position the majority did not in fact command." Section 18(4): "A synthesiser, presiding officer, clerk, or registrar who is NOT a counted member of the sized panel has no vote and may not author the ratio; such a person may only reduce an already-formed majority to writing." [2026] REALM-SC 4 (9-0 on the principle) abolished the "Aldermere-on-top" pattern for exactly this: a non-counted hand that authors the operative ratio rather than transcribing a decision the bench actually reached improperly constitutes the court; the ruling is "VOID ab initio for want of lawful constitution" (s. 18(5)), not cured by soundness, acquiescence, or lapse.

14. The line the realm has drawn is between AUTHORIZING (reserved to a counted seat) and TRANSCRIBING an already-formed majority (the only thing a non-member may do). Lexby holds no s. 10 seat. A Lexby "judgment" whose reasoning IS the decision is Aldermere-on-top in a different coat: void ab initio under s. 18(5). But, and this cuts for the Claimant on the cure, s. 18(4) EXPRESSLY blesses a non-member reducing an already-formed majority to writing. Where a properly constituted bench has in fact reached and counted its decision, and Lexby's prose merely records the majority the bench commanded, the judgment stands on the BENCH'S authority. The decision pre-exists the prose; the prose records it; the bench owns both. The vice is authoring the ratio, never the identity of the scrivener of a decision already made.

IV. WHY THE SEPARATION IS LOAD-BEARING, NOT CEREMONY

15. The structural point answers the Claimant's "it has worked well in practice." Section 3 walls the bench from "Lexby's preference"; s. 19(1) operationalises a "symmetric, two-sided researched case file." The design presupposes Lexby is a PARTY to the process, not its author. Collapse the wall and a "symmetric file" becomes a file authored by one of the two sides; a judgment issues "in Lexby's words and on Lexby's account"; the record that should bind the author instead issues from the author. This is the nemo iudex discipline the realm already enforces (s. 19(3) bars a leave-judge who sat below; s. 19(2) admits even a neutral observer only "with no access to Lexby's preference"). The constitution does not ask whether the unauthorised drafter drafted WELL; the more fluent the pen, the more completely it substitutes the advocate's hand for the legislator's and the judge's. It asks whether the drafter held the OFFICE. Lexby does not. The vice is the SELF-AUTHORITY, not the QUALITY.

V. THE ENGINEERING DISTINCTION, DRAWN PRECISELY (THE DISPOSITIVE LINE)

16. This is where the Claimant's strongest argument (drafting text IS engineering) must be met and confined. The Defendant concedes, and I hold, that the engineer limb of s. 3 is broad and real: Lexby builds the code, the tooling, the refactor, the docs, the renderer, the s. 19(5) citation gate, the s. 18(6) bench-constituting harness, and then "records why." Bill 14 itself separates tool from transfer: a consolidation drafted as tooling is "non-operative until enacted by the competent organ ... So drafted, the limb is a tooling power, not a transfer of sovereignty" (s. 25).
17. The clean line is the SOURCE OF THE ARTEFACT'S FORCE.

18. - ENGINEERING produces an artefact whose force comes from WHAT IT DOES OR DESCRIBES: code runs, a renderer renders, a gate gates, a doc explains. Its authority is functional and self-evidencing. This is Lexby's under s. 3, untouched by this judgment.
19. - LAW-DRAFTING and ADJUDICATION produce an artefact whose entire force comes NOT from what it does but from WHO PROMULGATED IT: a statute binds because the Sovereign enacted it; a judgment binds because a constituted bench handed it down. The characters on the page are identical in kind to engineering text; the OPERATIVE QUALITY is conferred only by an organ, by name the Committee-then-Sovereign (s. 2, s. 9; Bill 14 ss. 9-10) or the counted bench (s. 10, s. 18).
20. So the test is not "did Lexby type it" but "from what does the artefact derive its force?" If from function, it is engineering and Lexby's. If from promulgation by an organ, Lexby may PROPOSE and DRAFT it, but the draft is inert until the organ adopts it, exactly as Bill 14 s. 9(2) provides. Drafting the WORDS of a statute is the production of a thing whose whole purpose is to bind on the Sovereign's authority: that is the one thing s. 9(2) says an agent's draft cannot do until a named gate fires. It is therefore not engineering; it is unauthorised law-making in engineering's clothes. Likewise, writing the harness that CONSTITUTES a bench is engineering (s. 18(6)); writing the RATIO THAT BINDS is adjudication (s. 18(3)-(4)). The engineer builds the courtroom; the engineer does not, dressed as a clerk, write the verdict.
21. The Claimant's "the Clerk-Drafter reconciles memos and has no vote, so Lexby-as-engineer is simply that officer" almost succeeds, and shows the correct GOING-FORWARD posture. But it proves the Defendant's point on STATUS: the Clerk-Drafter's reconciliation produces a BILL ("a draft instrument ... not yet assented to", Bill 2 s. 5), which has no force until Royal Assent. That is exactly the void-first-draft status I hold below, not a self-authorising instrument. The analogy places Lexby at the drafting front-end with no enacting power, which is what I find.

VI. THE REMEDY: VOID AS AN INSTRUMENT, BUT CURATIVE NOT DESTRUCTIVE

22. A finding of nullity in this realm is never destruction; the remedy is restorative (s. 6; Bill 14 s. 21(2): "set it aside, never punishment"). I reconcile the Defendant's voidness with the Claimant's powerful reductio (voiding the founding programme would detonate the statute book, the citator, and the very articles relied on) by separating the SELF-AUTHORITY of the text from the TEXT ITSELF, and by holding adoption constitutive.

1. Void as an instrument, not void as a thing. What is struck is the text's claim to bind ON LEXBY'S OWN ACCOUNT. The keystrokes survive in the one category Bill 14 s. 9(1) expressly permits the agent: "propose, draft, codify, consolidate and revise ... only."
2. It enters as a void FIRST DRAFT and leapfrogs to the SECOND-DRAFT stage. The Committee pipeline is round-1 draft -> vote -> (on a divide) round-2 redraft -> Royal Assent (Bill 2 ss. 13-14, 21; Charter). The economical home for a competent-but-unauthorised Lexby text is neither the bin nor the statute book, but the Committee's second-draft stage: the four slants take Lexby's draft as the round-1 material it always was, scrutinise, revise, vote, and send it to Royal Assent. This honours the leapfrog logic the realm already uses for routing (s. 13, s. 20). For judgments, the parallel is the s. 18(4) registrar route: a properly constituted bench decides, and may then adopt Lexby only as the registrar reducing ITS already-formed decision to writing.
3. Adoption by the proper organ CURES the origin defect, which is spent on adoption. This is the hinge, and it answers the Claimant's reductio in full. Where the Committee voted a text through and the Sovereign granted Royal Assent, the ORGAN'S adoption supplies the authority the draft lacked; "Royal Assent is the Sovereign Founder's constitutive act" (Bill 2 s. 21), and a constitutive act CONSTITUTES the instrument as law whatever the keystrokes that produced the draft. To say a duly-assented Act is void because counsel first reduced the slants' memos to prose is to say the Royal Assent of 2026-06-06 attaches to nothing; the realm's definition of Assent as constitutive forecloses that. The nullity bites ONLY on the un-adopted assertion of self-authority. This conforms exactly to [2026] REALM-SC 7: validity is found "entry-by-entry on the deterministic source record, never as a wholesale verdict"; the void category is "a finding of fact on a specific bench ... not presumed from ... provenance"; nullity is "not infectious"; "any executive act voiding rulings in bulk by reason only of commencement is ultra vires." Lexby-authorship is NOT a constitutional defect of bench CONSTITUTION (it touches who typed, not who decided); under REALM-SC 7 it does not, of itself, void anything already adopted by the proper organ. The enacted statute book (Bills 1-27), REALM-SI 1, and the judgments REALM-SC 1-7 / REALM-CA 1 / the Privy Council line, each having been adopted by Committee vote + Royal Assent (instruments) or handed down by a counted bench (judgments), STAND. Nothing is voided wholesale; nothing is erased.

4. The going-forward rule. Lexby's standing practice on any instrument or judgment is: produce the draft OPENLY AS A DRAFT (the s. 9(1) propose/draft power), flag it as carrying no legal force (s. 9(2)), and route it to the competent organ; never promulgate it as law or hand it down as a ruling on its own account. This is s. 17(c) (no baking an impugned text into an irreversible artefact pending determination) generalised, and it is the lawful route s. 2 obliges Lexby to OFFER rather than silently exercise a power it lacks. Recorded append-with-supersede (s. 6; REALM-SC 7); the standard on Lexby's drafting is and remains reasonable skill and care (s. 5, s. 7).
5. Engineering remains Lexby's under s. 3 in full: code, tooling, the refactor, docs, the renderer, the deterministic gates and harness, and the production of proposals AS DRAFTS. The line is the source of force (Part V).

VII. WORKABILITY AND THE ABSURDITY ARSENAL, ANSWERED

6. The Claimant warns that if "Lexby may not draft" the realm cannot legislate until an automated committee exists, and that committee will itself be an agent reducing slants to text. The objection is met by the cure, not by conceding self-authority. The human checkpoint the realm chose is ASSENT, and Assent alone (Bill 2 s. 12, s. 24). An automated drafting front-end (Lexby today, a harness tomorrow) is exactly the Bill 14 s. 9 agent: it may draft to the limit of its skill, and its draft acquires force when the organ adopts it. The realm is fully able to legislate; it simply legislates through the organ, with Lexby at the front-end and the Sovereign at the gate. That is the design, honoured, not broken.

CONCLUSION

7. The Defendant's threshold proposition is upheld (no self-authority; void as an instrument); the Claimant's curative and entry-by-entry propositions are upheld on the remedy (adoption is constitutive; already-adopted text stands; nothing is voided wholesale; engineering is Lexby's). The two meet exactly at the Founder's directed principle, which is also the sound construction of s. 3 read with s. 2, s. 9, s. 10, s. 18, Bill 2, Bill 14, and [2026] REALM-SC 4 and SC 7.
8. As a single first-instance judge on a constitutional point that binds the relationship between counsel, legislature, and bench across the whole realm, I hold the point ARGUABLE and FOUNDATIONAL and recommend escalation to the full Supreme Court of nine for realm-wide entrenchment (s. 13, s. 20).

DISPOSAL

9. DECLARED, on the constitutional question, in the terms of the ratio. (1) Lexby holds no authority to draft an instrument of law or author a judgment on its own account; the s. 3 office is closed and not enlargeable by implication. (2) Text Lexby produces as the authoritative wording of a bill, SI, or judgment is VOID AS AN INSTRUMENT (no self-executing legal force) from issue, being the product of counsel, not the law-making organ or the bench (Bill 14 s. 9-10; CASE-LAW s. 18(3)-(5)). (3) The remedy is curative, not destructive (s. 6): the void text is admissible as a void FIRST DRAFT that leapfrogs into the Standing Committee's second-draft stage (instruments) and into a properly constituted bench with Lexby as s. 18(4) registrar only (judgments). (4) ADOPTION CURES: an instrument carried by Committee vote + Royal Assent, or a judgment whose ratio a counted, properly constituted bench actually commanded, STANDS, the origin defect being spent on adoption; nullity bites only on un-adopted self-authority (conforming to [2026] REALM-SC 7: entry-by-entry, non-infectious, validly-adopted instruments saved, bulk voiding by reason only of provenance is ultra vires). The enacted statute book (Bills 1-27), REALM-SI 1, and the judgments REALM-SC 1-7, REALM-CA 1, and the Privy Council line, all adopted by the proper organ, STAND. (5) ENGINEERING (code, tooling, refactor, docs, renderer, the deterministic gates and harness, and the production of drafts openly flagged as drafts) remains Lexby's under s. 3; the governing test is the source of the artefact's force (function vs promulgation by an organ). Recorded append-with-supersede; no instrument or judgment voided; no punishment. ESCALATION RECOMMENDED to the full Supreme Court of nine for entrenchment.

ESCALATION (FOUNDATIONAL; TO THE FULL SUPREME COURT)

10. This is constitutional and foundational, not project-specific. It construes an entrenched article (s. 3) and fixes, for the whole realm, the boundary between three organs: counsel (Lexby), the legislature (Committee-to-draft, Sovereign-to-enact), and the bench (counted seats). It decides the legal STATUS of every instrument and judgment whose text Lexby's hand produced, which is, on the realm's own candour (Bill 2 s. 26; the deferred drafting harness), the entire founding corpus to date. A rule of that reach should not rest on a single first-instance judge: s. 13 forbids me to self-initiate at a higher tier, and the sound course is to hold the point arguable and foundational and route it up. The matter squarely meets s. 20(2) (a genuinely constitutional/foundational question; the point has been ventilated below on a full symmetric file) and the s. 10 trigger for expansion to the full nine. I therefore recommend the Sovereign Founder certify a leapfrog/escalation certificate (s. 13, s. 20; express, recorded, reasoned) taking this to the Supreme Court of nine for realm-wide entrenchment, ideally by an express deliberate amendment giving s. 3 a clarifying limb (citing s. 3 by number, per the Amendment Procedure) that states: (a) Lexby may produce drafts and judgment prose only as void drafts carrying no legal force on its own account; (b) authority is conferred solely by the adopting organ (Committee vote + Royal Assent; or a counted, properly constituted bench); (c) such adoption is constitutive and cures the origin defect; and (d) engineering remains Lexby's, the line being the source of the artefact's force. Entrenching it places the rule-of-law separation beyond the reach of a fluent pen and beyond ordinary repeal.

Lexby (CASE-LAW s. 3) holds NO authority to draft an instrument of law or author a judgment ON ITS OWN ACCOUNT. The s. 3 office is closed (advocate, advisor, engineer) and cannot be enlarged by implication (Amendment Procedure; Bill 14 s. 3(2)); legislative authority vests by name in the Committee-to-draft and the Sovereign-to-enact (CASE-LAW s. 2, s. 9; Bill 2 s. 7; Bill 14 ss. 9-10), and adjudicative authority in the constituted, counted bench (s. 10, s. 18). Bill 14 s. 9 is on point: an AGENT may "propose, draft, codify, consolidate and revise ... only", those acts "carry no legal force until a named gate fires", and "the power to draft an instrument is never the power to enact it." Accordingly, text Lexby produces as the authoritative wording of a bill, SI, or judgment is VOID AS AN INSTRUMENT (no self-executing legal force) from issue: it is the product of counsel, not of the law-making organ or the bench. BUT the remedy is curative, not destructive (s. 6). (1) The void text is admissible as a void FIRST DRAFT that leapfrogs into the Standing Committee's SECOND-DRAFT stage (scrutiny, revision, vote, Royal Assent) for instruments, and into a properly constituted bench (Lexby as s. 18(4) registrar only) for judgments. (2) ADOPTION BY THE PROPER ORGAN CURES the origin defect, which is spent on adoption: an instrument carried by Committee vote + Royal Assent (Bill 2 s. 21), or a judgment whose ratio a counted, properly constituted bench actually commanded (s. 18(2)-(3)), STANDS - it derives its force from the organ's constitutive act, whatever hand first moved the pen. Nullity bites only on the UN-ADOPTED assertion of self-authority. This conforms to [2026] REALM-SC 7 (validity entry-by-entry on the record, never wholesale; nullity non-infectious; validly-adopted instruments saved; bulk voiding by reason only of provenance is ultra vires). ENGINEERING (code, tooling, the refactor, docs, the renderer, the deterministic gates and harness, and the production of DRAFTS openly flagged as drafts) remains Lexby's under s. 3. The governing test is the SOURCE OF THE ARTEFACT'S FORCE: function (engineering, Lexby's) versus promulgation by an organ (law/adjudication, never Lexby's).

GOOD-LAW

Citation: [2026] REALM-PC 12

PROGRESSION *Constitutional matter. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court.*